

26CMCV01155 26CMCV01155

County: los-angeles
Division: Civil Law and Motion
Department: A
Hearing date: 2026-08-20
Motion: EVOLECTRIC, INC.'S DEMURRER
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Case Number: 26CMCV01155 Hearing Date: August 20, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

CARSON DOMINGUEZ PROPERTIES, L.P.,

Plaintiff(s),

vs.

EVOLECTRIC,
INC., and DOES 1 to 10, INCLUSIVE,

Defendant(s).

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CASE NO: 26CMCV01155

[TENTATIVE]

ORDER RE: EVOLECTRIC, INC.'S DEMURRER

Dept.

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DATE:

August 20, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 07/01/26

TRIAL:

Not Set

MOVING PARTY: Defendant
EVOlectric, Inc.

RESPONDING PARTY: None

1. Background

This case arises from a June 14, 2024 lease agreement between Carson Dominguez Properties, LP ("Plaintiff") and EVOlectric, Inc. ("Defendant"). Plaintiff alleges that Defendant was served a 3-day notice to pay rent or quit on June 10, 2026 due to unpaid rent of \$52,098.78.

On July 1, 2026, Plaintiff filed a Complaint for Unlawful Detainer against Defendant.

On July 21, 2026, Defendant filed a Demurrer to the Complaint.

Though Defendant's reply brief references an opposition apparently served by Plaintiff, Plaintiff has not filed with the court an opposition to the Demurrer and the court therefore does not consider the arguments therein asserted.

2. Discussion

a. Demurrer to Complaint for Unlawful Detainer

Defendant argues that Plaintiff's cause of action under Code of Civil Procedure section 1161(2) fails to state facts sufficient to constitute a cause of action against Defendant, due to Plaintiff including late fees in the amount sought from Defendant.

A complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., §425.10(a).) A plaintiff is required to set forth the ultimate or "essential facts of his case with reasonable precision and with particularity sufficient to acquaint the defendant with the nature, source and extent of his cause of action." (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)

"The statutory situations in which the remedy of unlawful detainer is available are exclusive, and the statutory procedure must be strictly followed." (Greene v. Municipal Court (1975) 51 CA 3d 446, 450.)

"The proponent of a liquidated damages provision in a residential lease bears the burden of proving its validity under Civil Code § 1671." (Del Monte Properties & Investments, Inc. v. Dolan (2018) 26 Cal.App.5th Supp. 20, 23.) "While presumptively invalid, liquidated damages may be imposed 'when, from the nature of the case, it would be impracticable or extremely difficult to fix the actual damage' caused by a breach." (Ibid.)

"[A] three-day notice to tenant to pay rent or quit the premises that includes late fees in the past-due rent calculation is an overstatement of rent which renders the notice void." (360 So Reeves, LLC v. Dutton (2026) 119 Cal.App.5th Supp. 1.)

The Three-Day Notice to Quit served on Defendant on June 10, 2026 is attached as Exhibit 2 to the Complaint, and states that "you are required to pay the rent now due and owing... in the amount of \$52,098.78, representing the estimated rent and fees due for the months of January 2026, February 2026, March 2026, April 2026, May 2026, and June 2026, and all unpaid late fees." The Notice to Quit includes a breakdown of the \$52,098.78, which includes eight charges for late fees.

Plaintiff included payment of late fees in the amount requested to be paid in the Three-Day Notice to Quit, and thus overstated the total amount due that is permissibly by statute, rendering the notice void. Thus, the June 10, 2026 Notice to Quit is invalid and does not support Plaintiff's Complaint for Unlawful Detainer.

Defendant requests that Demurrer be sustained without leave to amend. Based upon the legal authorities advanced by Defendant, including but not limited to Del Monte Props. & Invs., Inc. v. Dolan, supra, and 360 So Reeves, LLC v. Dutton, supra, and good cause appearing therefore, the court sustains the demurrer, without leave to amend. Defendant's request for an award of attorney's fees and costs are not properly before the court in connection with this demurrer, and the court declines to rule on it.

3. Conclusion

Based on the foregoing, the court sustains Defendant's demurrer, without leave to amend. The court orders the action dismissed.

Defendant
is ordered to give notice.

IT
IS SO ORDERED.

DATED: August 20, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court